HILCHOT PESAH - SHULHAN ARUKH

Hames After Pesah & How Mekhirat Hames Really Works

Hilchot Pesah Siman 448

Recap of Previous Classes

Class	Simanim	Topics Covered
Class 1	429–432	30 days before Pesach; month of Nisan; Shabbat HaGadol; Bedikat Chametz timing; the bracha
Class 2	432–433	Why "al biur" not "al bedikat"; candle vs torch; where to check; high/low places; hole in walls; synagogues
Class 3	434–437	After Bedikah — bitul night and day; chametz timeline; appointing agents; missed bedikah; renting a house
Class 4	438–440	Mouse/child with chametz; kezayit threshold; kavua principle; non-Jew depositing chametz
Class 5	443–444	Chametz on Erev Pesach after six hours; calculating the times; smelling chametz; Erev Pesach on Shabbat
Class 6	446–447:1–2	Finding chametz during Pesach; muktze on Yom Tov; introduction to kashrut principles; be-mashehu rule
Class 7	447:4, 5, 10	Chozer ve-ne'or (reawakening); practical implications for hechsherim; noten ta'am li-fgam on Pesach
Class 8	**448**	**Chametz she'avar alav ha-Pesach; mechirat chametz — origins, kinyanim, and practical details; feeding animals chametz**

Siman 448 – Chametz After Pesach (דין חמץ שעבר עליו הפסח)

Contains 7 Se'ifim

Note: The Shulchan Aruch does not have a dedicated section on Mechirat Chametz (selling chametz). The laws of selling chametz appear within this siman, as a natural extension of the discussion on chametz left over after Pesach.

Se'if 1 – A Non-Jew's Chametz After Pesach

Shulchan Aruch: Chametz that belonged to a non-Jew throughout Pesach is permitted after Pesach — even to eat.

- **Why?** No prohibition was violated. The non-Jew was not subject to any restriction on owning chametz.
- **Note:** There was an opinion in the Gemara that even a non-Jew's chametz would be prohibited after Pesach, but the halacha rejects this.

Se'if 2 – Receiving a Gift of Chametz from a Non-Jew on Pesach

Shulchan Aruch: If a non-Jew brings a Jewish person a gift of chametz during Pesach (even on the 8th day, which is de-rabbanan):

1. **Do not accept it** — accepting creates ownership, which violates Bal Yera'eh / Bal Yimatzei.
2. **Do not imply willingness to accept** — e.g., saying "leave it in my house, I'll have it after Pesach" constitutes implied consent, and your chatzer (property) would acquire it on your behalf.
3. **It is good (though not strictly required) to explicitly state:** "I do not want to take ownership of this."

Why the Emphasis on the 8th Day?

The Beit Yosef explains: this halacha applies throughout Pesach, but the chiddush is that **even on the 8th day** (which is only de-rabbanan outside of Israel), you still cannot accept chametz.

The Chatzer Koneh Principle

- Normally, your property (chatzer) automatically acquires ownerless items or gifts placed within it — this is called **chatzer koneh**.
- However, **nothing can be acquired against your will**. If you don't want your chatzer to acquire the chametz, it doesn't.
- **The Rosh says:** You don't even need to explicitly state that you don't want your chatzer to acquire it. The **default assumption** (stam) is that during Pesach, a person would **not** want their property to acquire chametz. It's implicit.
- **However:** If you do something that **implies consent** (e.g., putting it in a cupboard, saying "I'll have it after Pesach"), then you've given authority to your chatzer to acquire — and that's a problem.

Practical Scenario: Chametz Delivered Through Your Letterbox

- If a company delivers chametz through your letterbox on Pesach (e.g., promotional Weetabix), by default your chatzer doesn't acquire it (you wouldn't want chametz during Pesach).
- **Don't** pick it up and put it in a cupboard — that implies consent.
- **Do:** Leave it where it is. Ideally, say explicitly "I don't want my chatzer to acquire this." Cover it with a utensil (as we learned in Siman 446). After Pesach, you can acquire it.

If the Non-Jew's Chametz Is in Your House (Not Yours)

If chametz is in your house but doesn't belong to you (non-Jew left it, or you explicitly rejected ownership):

- You still need to build a **mechitzah** (partition) of at least **10 tefachim (approx. 80cm)** or at minimum cover it — so you don't forget and come to eat it (as learned in Siman 440).

Se'if 3 – The Core Din: Chametz She'avar Alav Ha-Pesach

Shulchan Aruch: Chametz that a Jewish person owned over Pesach — **asur be-hana'ah** (forbidden to benefit from) after Pesach.

This is **even if** the person:

Circumstance	Still Forbidden?
Shogeg (forgetful — forgot to get rid of it)	✅ Yes — forbidden
Ones (completely helpless — no way to do anything about it)	✅ Yes — forbidden

Why So Severe?

- This is a **kenas** (penalty) instituted by the Chachamim.
- The Chachamim observed that people were **lax** about getting rid of chametz before Pesach. When Chazal impose very strict penalties, it typically indicates they saw widespread laxity.
- **Parallel:** The Chachamim similarly banned bathing in hot water on Shabbat (even if heated before Shabbat) because people were lying about when they heated the water.

Even Ones?

- Normally, ones carries **zero culpability** — you had no choice, no way out (e.g., you were in prison, on a voyage, an onein dealing with a funeral).
- Shogeg (forgetfulness) has **some** culpability — you didn't check carefully enough.
- **Even so**, the Chachamim applied the penalty to both — because people would claim "I was ones" to circumvent the rule.
- **The blanket rule:** Any chametz owned by a Jew over Pesach is **permanently forbidden** — no exceptions for intent or circumstances.

What Must You Do?

- The chametz must be **destroyed** — pour it down the drain, throw it away, etc.
- It is forbidden for **any** Jewish person — not just the owner.
- You cannot sell it, eat it, or benefit from it in any way.

One Leniency: Safek (Doubt)

- If there is a genuine **doubt** whether the chametz was owned by a Jew over Pesach → one may be lenient.
- **Why?** Because this entire prohibition is de-rabbanan, and **safek de-rabbanan le-kula** (in cases of rabbinic doubt, we are lenient).

Practical Ramifications of Chametz She'avar Alav Ha-Pesach

Buying from Jewish shops after Pesach:

- You must ensure the shop either has a **hechsher** (the entire shop is under a kashrut authority that handles mechirat chametz) or that the **owner** reliably did mechirat chametz.

- Not all Jewish shops in areas like Golders Green and Hendon operate under a hechsher. Some operate independently — you are relying on the owner's personal mechirat chametz.
- If the owner did not sell properly or at all — it is **forbidden** for any Jew to buy from that shop's chametz stock.

Eating at a non-religious Jewish friend's home after Pesach:

- If they serve pasta, bread, or other non-perishable chametz immediately after Pesach — there's a concern it was owned over Pesach.
- If it's clearly something that could have been bought fresh the morning after Pesach — it may be fine.
- If it's a genuine **safek** — you can be lenient (safek de-rabbanan le-kula).
- If it's **highly likely** or **certain** that the chametz was owned over Pesach — asur. No way around it, however uncomfortable.

Se'if 3 (Continued) – The Solution: Selling or Gifting to a Non-Jew Before Pesach

Shulchan Aruch: If, before Pesach, you **sold** or **gave as a gift** your chametz to a non-Jew — the din of chametz she'avar alav ha-Pesach does **not** apply. After Pesach, the chametz is fully permitted.

Conditions:

1. **Outright gift or complete sale** — must be genuine with no conditions attached.
2. Even if the Jew and non-Jew are **friends** and the Jew **knows** the non-Jew will keep it and return it after Pesach — it's still valid.
3. Even if sold for a **small amount** — valid (mechira gemura be-davar mu'at).
4. **No tanai (conditions)** — cannot say "I'm giving it on condition you return it" (see below on Matana Al Menat Lehachzir).

The Laws of Mechirat Chametz (Selling Chametz) — Detailed Discussion

Origins and History

- **The Talmud** does not explicitly discuss mechirat chametz as we practice it today.
- **The Tosefta (Pesachim)** describes someone at sea who cannot do bi'ur chametz — he can do a kinyan with a non-Jew to transfer ownership, even remotely. This is the only original source.
- **The Rambam** codifies this — notably, in the context of someone who is **unable** to destroy their chametz (on a voyage, etc.).
- **The Sdeh Hemed** (approx. 250 years ago) writes that the widespread practice of institutional mechirat chametz began with **Ashkenazi shopkeepers in Europe** who had large quantities of chametz stock and couldn't afford to destroy it all.
- Originally, individuals would sell directly to their non-Jewish neighbour — a simple, personal transaction. The institutional community-wide sale through a rabbi is a later development.
- **Chacham Ovadia** wrote at length defending the current practice, saying there is plenty to rely upon.

Ideal Practice

Everyone would agree: the **ideal** is to finish your chametz before Pesach, not to sell it. Plan ahead — use up pastas, flour, bread, etc., in the weeks before Pesach. Mechirat chametz should be a backup for items you genuinely cannot consume or dispose of (e.g., expensive whiskey).

Taking the Chametz Out of the House

Shulchan Aruch writes: You sell or give it to a non-Jew **outside your house** (mi-chutz la-bayit) before Pesach.

Two readings of this requirement:

Reading	Explanation	Practical Consequence
Strict reading (many Acharonim, Pri Chadash)	You must **physically remove** the chametz from your house for it to feel like a genuine sale. If it stays in your house, the concern is: (a) it doesn't feel like a real sale; (b) you might come to eat it.	You'd need the non-Jew to come and take the chametz out — which we don't do nowadays.
Lenient reading (other Acharonim)	"Mi-chutz la-bayit" doesn't mean literally take it out — it means do a proper **kinyan** (of which meshicha / physical transfer is one common method). Other kinyanim work even if chametz stays in your house.	The chametz can remain in your home as long as a valid kinyan was performed.

The solution that satisfies both readings:

Together with selling the chametz, you **also rent/lease** the area/space where the chametz is stored to the non-Jew (makneh the area space). This means:

- The space no longer belongs to you — it belongs to the non-Jew.
- The non-Jew has **authority and permission** to enter and take from that place.
- Even according to the strict reading, it's no longer considered "your house" (beitcha) — the concern is alleviated.

This is what we do in practice today — the mechirat chametz document includes renting/leasing the storage area together with selling the chametz.

How Does the Kinyan (Acquisition) Work?

Background: Kinyan Between Jews
The Gemara records a machloket:

Opinion	De'oraita Kinyan	De-rabbanan Kinyan
Rabbi Yochanan	**Kesef** (money) — the Torah creates transactions through payment	**Meshicha** (physical taking/pulling) — Chachamim instituted this as a precaution
Reish Lakish	**Meshicha** (physical taking) — derived from "ve-kano mi-yad amitecha" (Vayikra 25)	**Kesef** — also works

The Problem with a Non-Jew
The pasuk says "ve-kano mi-yad **amitecha**" — "acquire from your **fellow** [Jew]." The Gemara derives: **whatever kinyan works for a Jew from the Torah does NOT work for a non-Jew from the Torah.**

If you follow...	De'oraita for Jew	Therefore for Non-Jew...
Rabbi Yochanan (Rambam follows)	Kesef works de'oraita	Kesef does **NOT** work with a non-Jew; Meshicha does
Reish Lakish (Rashi follows)	Meshicha works de'oraita	Meshicha does **NOT** work with a non-Jew; Kesef does

Practical halacha: Because of this fundamental machloket, we do **both** kesef (money) AND meshicha — to satisfy all opinions.

Additional Kinyanim Used Today

Since we lack proper meshicha (we don't physically hand over all the chametz), multiple additional kinyanim are incorporated:

Kinyan	Description	Status
Kesef (money)	The non-Jew pays a first instalment toward the value of the chametz	Satisfies Rabbi Yochanan
Meshicha / Hagba'ah (physical transfer)	Ideally, the non-Jew takes the chametz. In practice, achieved by renting the storage space.	Satisfies Reish Lakish
Kinyan Chalipin (exchange)	The rabbi lifts an object belonging to the non-Jew (e.g., a pen) — a symbolic exchange	De-rabbanan kinyan; source in Megillat Rut
Kinyan Chatzer (property acquisition)	The non-Jew's rented space acquires the chametz on his behalf	De-rabbanan kinyan
Metaltelin Agav Karka	Movable goods (chametz) sold together with a piece of land	De-rabbanan kinyan — powerful because land kinyan is more straightforward
Handshake / contract	Accepted commercial practice in the country — valid based on **dina de-malkhuta dina**	The Mishnah Berurah validates kinyanim based on accepted societal commercial norms

In practice today: The mechirat chametz document incorporates **all** of these kinyanim together — kesef, chalipin, chatzer, agav karka, contract, handshake — to ensure the sale is valid according to every opinion.

It Must Be a Genuine Sale

- If the non-Jew decided to **keep all the chametz** and not sell it back — that's his right. The Jew **cannot** sue him in non-Jewish courts.
- If you did sue — it would make a **mockery** of the entire institution.
- **Rav Moshe Feinstein** was asked about a non-religious shopkeeper who did mechirat chametz but told others "I don't really believe in this." Rav Moshe ruled: **no problem** — the person signed, gave authority to the rabbi, and the kinyan was performed. Internal thoughts don't invalidate a legal transaction. Only if an **action** demonstrated insincerity would it be a problem.

Pricing

- The Shulchan Aruch writes you can sell "even for something small" (davar mu'at).
- Some poskim were concerned that selling a huge amount of chametz for very little money implies the sale isn't genuine.
- **Counter-argument:** Because of the urgency to avoid transgression, a person is willing to sell cheaply.
- **In practice today:** The sale is for the **full estimated value**. The non-Jew pays a **first instalment** (e.g., £50–100). The remainder is a **debt** (zekufah alav be-milveh). After Pesach, the Jew buys it back — cancelling the debt.

Specifying the Chametz

The **Biur Halacha** and **Chacham Ovadia** emphasise: you should **specify** where your chametz is on the sale form.

- **Good:** "In the kitchen, third cabinet above the sink; garage shelf, bottom row."
- **Not good:** "All the chametz in my house." (Too vague — weakens the sale.)

Matana Al Menat Lehachzir Does NOT Work

Matana al menat lehachzir = a gift given on the condition that it be returned.

- Normally in halacha, this is a valid gift (shemah matana — it has the legal status of a gift).
- **On Pesach, it does NOT work.** Why? Because if the condition isn't fulfilled (the non-Jew doesn't return it), the gift is retroactively void — meaning you owned chametz the entire time.
- Therefore: **no conditions (tanai) of any kind** may be attached to the sale or gift of chametz. It must be an outright, unconditional transfer.

Se'if 5 – Even with Bitul, the Penalty Applies

Shulchan Aruch: Even if you did bitul chametz (said Kol Chamira), but chametz was found in your house after Pesach — it is still forbidden (chametz she'avar alav ha-Pesach).

- **Also:** Simply declaring it hefker (ownerless) doesn't help either — you didn't physically remove or sell it.
- The Chachamim's penalty applies regardless of bitul or hefker — only a **genuine sale or gift** to a non-Jew exempts you.

Se'if 6 – Feeding Chametz to Animals on Pesach

Shulchan Aruch: It is forbidden to feed chametz to **any** animal on Pesach — even other people's animals, even stray animals.

Why can't you feed a stray animal?

- The **Mishnah Berurah** explains: there is **hana'ah** (benefit/satisfaction) in the act of feeding an animal. Every human has an innate instinct to care for animals — feeding a stray cat or dog gives you a sense of satisfaction. That emotional benefit constitutes hana'ah from chametz.
- **Also:** Even hefker chametz that you find on the street — you cannot pick it up to feed animals, because by picking it up, you would acquire it (kinyan).

If a non-Jew asks you to feed his animal on Pesach with chametz — you may not.

Se'if 7 – Pet Food on Pesach

Shulchan Aruch / Poskim: You cannot feed your pet chametz-based food on Pesach.

- Pet food containing chametz grains **belongs to you** — you bought it for the dog/cat.
- It's fitting for animal consumption — so it has the halachic status of chametz.
- **You are violating Bal Yera'eh / Bal Yimatzei** — owning chametz on Pesach. This is potentially an **isur de'oraita**.
- It doesn't matter that you're not eating it — the prohibition is on **owning** it.

Solutions

Option	Details
Buy kosher-for-Pesach pet food	Available nowadays from kosher suppliers
Sell the pet food as part of mechirat chametz	Include it in your sale to the non-Jew
Sell the animal to the non-Jew over Pesach	Then the non-Jew can feed it whatever he wants — even if you know he'll use chametz. After Pesach, buy it back.
Give the animal to a non-Jew to care for	But you **cannot** tell the non-Jew to feed it chametz. If you don't specify, and the non-Jew feeds it chametz on his own — that's fine.

Summary of Key Halachot

Se'if	Key Takeaways
448:1	Non-Jew's chametz after Pesach: fully permitted, even to eat. No prohibition was violated.
448:2	Don't accept chametz gifts from a non-Jew on Pesach. Don't imply consent. Chatzer koneh doesn't apply when you wouldn't want it. Good practice: say explicitly "I don't want ownership." Cover any chametz left in your house.
448:3	Chametz she'avar alav ha-Pesach: asur be-hana'ah — even if shogeg or ones. A kenas by the Chachamim. Safek: lenient (de-rabbanan). Must verify Jewish shops did mechirat chametz.
448:3 (mechira)	Sale or gift to a non-Jew before Pesach exempts from the penalty. Must be genuine — no tanai. The Shulchan Aruch says "outside the house" — resolved by renting the storage space to the non-Jew.
448 (history)	Mechirat chametz as we know it: not in the Talmud (only Tosefta, for someone at sea). Began with Ashkenazi shopkeepers ~400 years ago. Ideal: finish chametz before Pesach.
448 (kinyanim)	Machloket Rishonim: kesef or meshicha for non-Jew. We do both, plus chalipin, chatzer, agav karka, handshake/contract. Modern mechirat chametz documents include all kinyanim.
448 (matana)	Matana al menat lehachzir doesn't work for chametz — if condition fails, ownership was never transferred. Must be outright gift or sale with no conditions.
448:5	Even with bitul or hefker — if chametz remained in your house, the penalty applies. Only sale/gift to a non-Jew works.
448:6	Can't feed chametz to any animal on Pesach — even strays. Emotional satisfaction = hana'ah. Can't pick up hefker chametz to feed animals.
448:7	Pet food with chametz: isur de'oraita of owning chametz. Buy Pesach pet food, sell the food, or sell the animal to a non-Jew over Pesach.

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